

CV-25-003433 TORRES, CANDIDO RODRIGUEZ vs STANISLAUS COUNTY - Defendant's Motion for Summary Judgment - HEARING REQUIRED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: The Court is strongly inclined to grant the motion. However, because its logic is in part based on legal authority and analysis not offered by the parties, further briefing will be granted if requested; that is both mandatory and best practice in determining if I am correct. This is a straightforward question: Does a risk management firm's otherwise statutorily compliant denial letter of a claim trigger the six-month statute of limitations, or is it insufficient to do so? This does not appear to have a straightforward answer either in the statutes or the case law, but the County appears to have the better argument. All objections are OVERRULED. The Court does not consider any legal conclusions reached by the declarants and bases any conclusions on the documents themselves and not on declarants' interpretations of them. The Request for Judicial Notice is denied as moot, as I believe it is unnecessary in the instant case. (See *Bienville Water Supply Co. v. City of Mobile* (1902) 186 U.S. 212, 217.) In this case, Plaintiff Rodriguez Torres crashed on April 11, 2023, and he and his wife Plaintiff Rodriguez presented a claim to the County on October 6, 2023. Notices of rejection were mailed on April 3, 2024. Plaintiff filed suit on April 11, 2025. Government Code section 945.6 provides for a six-month statute of limitations after receiving a denial, but a two-year statute from the date of the event if no denial is sent. Government code section 912.4 holds that the claim was deemed to have been rejected 45 days after its submission when no action was taken. In this case, the original denial occurred by operation of law on November 20, 2023, well before the rejection letters were sent. While the county was well past the 45-day limit for their rejection, *Katellaris v. County of Orange* (2001) 92 Cal.App.4th 1211 shortens the filing time to six months from the time of rejection even under these circumstances. If no notice is ever sent, the two-year limit applies. Tardy notice of rejection only delays the start of the six-month clock. Plaintiffs argue that because the board or an authorized employee did not send the rejection letter, it is of no import. But in fact the rejection letter appears to comply with statutory notice; even though the outside contractor apparently believed it was rejecting the claim at that point, the claim had already been rejected by operation of law. No evaluation of the claim was necessary to make that determination, and the statutory scheme for enforcing the 45-day rule controls. Given that, the issue here is whether the contractor's notice is sufficient. Even assuming the County did no investigation and did nothing, the notice requirement is designed to provide Plaintiffs with the specific information on when the time for filing the suit would expire. This notice did so, and the contractor had both apparent and actual authority to send the letter. Plaintiffs were on notice of the requirements to sue within six months of the rejection, and did not do so. Such a failure is jurisdictional and the motion is therefore likely to be granted. If the Court reached the argument that the parties made, the motion would likely be granted. The County has provided uncontradicted evidence that it was involved in the determination of liability prior to the sending of the rejection letters, and the letters were sent at the request of the County.

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